CITY OF WEST LINN

1. STATUTE OF LIMITATIONS (REPLY PP. 2-4)

City of West Linn: Plaintiff conceded a two-year clock and none of Plaintiff's tolling theories (equitable, ORS 12 .160, concealment, continuing-violation, relation-back, discovery rule) apply.

Plaintiff: Opp. 20-26 & Mot. for Leave 2-3 show blindness, loss of ID caused by the arrest, 14 denied library days, 62 defense files wiped, and thumb-drive rejections—each an "extraordinary circumstance" under *Booth v. U.S.*, 914 F.3d 1199. Body-cam suppression and file deletions were self-concealing *Brady* violations that tolled time; the clock did not start before actual release (7-8-22) and has been equitably tolled since.

Exhibit 1	Communications with **Eric Oss** | Portland Division Manager **Randy Moore**
Exhibit 2	**Emails with William making every attempt, including filed MSJ While Wiliam constantly scheduled and drug his feet.**
Exhibit 3	**William Stabler moving trial for his clients vacation**
Exhibit 4	**Attempt in April to set up ECM**

2 AUGUST 7 2024 AMENDMENT ORDER (REPLY PP. 5-6)

City of West Linn: Plaintiff's FAC/SAC exceeded leave to amend.

Plaintiff: Doc 12 allowed amendment against the policing entity and John Doe officers. City of West Linn PD and Officers Gunnarson/Blyth are those actors; Rule 15(c) lets Plaintiff name them once identified. FAC was only three days late, cured by the Court's Doc 17 order, and *Foman v. Davis* says amendments must be freely granted absent prejudice—none shown.

NOTE due to ID blockage Plaintiff could not enter the court, see Exhibit , Communications with Eric Oss & Randy Mooe, lso See Exhibit 13,

3 "Wrong defendant" label (Reply p. 6)

City of West Linn: The Police Department is not suable under § 1983**.**

Plaintiff's r: Opp. 67-69 expressly consents to substituting "City of West Linn" under *Jackson v. Bloomfield*, 731 F.2d 652; dismissal would elevate form over substance.

**NOTE **: I my be wrong : If there needs to be an amendment I while gladly make one, however it was said by he first of three lawyers presenting here it was he same... Plaintiff followed West Linn in state court o be accommodating and it's half the reason why we are here.

---

4 Failure-to-state-a-claim (Reply pp. 6-7)

City of West Linn: Allegations are conclusory; no Fourth-Amendment, conspiracy, medical, due-process, or Brady facts.

Plaintiff's: SAC ¶¶ 43-48 & Opp. 18-20 identify the "eight-minute arrest," Blyth's "another incident" quote, dispatch logs, and photos—satisfying *Iqbal*. Three detailed conspiracies (scene fabrication, COVID courtroom lie, body-cam seal) meet *Avalos v. Baca*. Eyewear denial and deliberate COVID exposure (¶ 72) satisfy *Gordon* deliberate-indifference standards. One-week over-detention after a release order plus officers' COVID lie states a due-process claim (*Edwards v. Balisok*). Fourteen written kites for body-cam video denied = *Brady* suppression outside immunity (*Buckley*).

Alleged Policy Violations Regarding Inaction and Incomplete Reporting

The complaint alleges that over a period of three days (March 4-6, 2022), West Linn Police officers were called to the scene multiple times but failed to act while witnessing extensive property destruction and credible threats, and then omitted these facts from their reports.

1. Failure to Act on Property Destruction

- **The Alleged Facts: The complaint states there were "7 windows broken out," a hose was used for "flooding th[e] basement" and soaking electronics, flour and water were poured on belongings, and a fridge was tipped over, all while the area was experiencing freezing temperatures. Despite "5 visits by wlpd," no protective action was taken.**
- **The Alleged Policy Violation (Neglect of Duty): This inaction is an alleged violation of the department's standard of conduct.**
  - **Policy 300.3 - STANDARDS OF CONDUCT lists "Neglect of duty" as a violation.**
  - **Policy 339.3.5 - OFFICER RESPONSIBILITIES AT SCENE OF DOMESTIC VIOLENCE requires officers to use all reasonable means to "prevent further violence".**

2. Failure to Act on Credible Threats

- **The Alleged Facts: An officer intervened to confiscate five gallons of gas from Macy Galla after she "threatened to burn down the house". This shows the officers were aware of a direct threat of "fire and gas" but allegedly took no further action, such as an arrest for terroristic threatening.**
- **The Alleged Policy Violation (Neglect of Duty): Failing to make an arrest when there is probable cause for a serious crime is an alleged violation of duty.**
    - **Policy 300.3.3 - DUTY TO KNOW AND COMPLY states that "Members are required to know and comply with all department policies, procedures, rules, and directives".**
    - **Policy 339.3.2 - Law Enforcement Action states that "When a peace officer has probable cause to believe that a crime has been committed, the officer should arrest the suspect".**

3. Omission of Facts from Official Reports

- **The Alleged Facts: The complaint alleges that "not one thing even mentioned" regarding the extensive property damage (windows, flooding, etc.) or the "repeaed coaching" of the witness made it into the official reports, leading to a biased and incomplete foundation for the prosecution.**
- **The Alleged Policy Violation (Falsification of Reports): This is an alleged violation of the requirement for truthfulness and completeness.**
    - **Policy 300.3.1 - STANDARDS OF CONDUCT states: "No member shall knowingly falsify any official report or enter or cause to be entered any inaccurate, false or improper information in the records of the Department. Members will be truthful and complete in all reports".**

West Linn Body Camera Policy

As requested, here is the specific policy regarding body-worn cameras. The complaint alleges that camera evidence was suppressed or that recordings would have proven the Plaintiff's claims.

Policy 429: Portable Audio/Video Recorders

- **429.4 PROCEDURE "Members shall activate the recorder to record all contacts with citizens in the performance of their official duties... Unless it is unsafe or impossible to do so, members should verbalize the reason for deactivation on camera prior to deactivating the recorder."**
- **429.4.1 REQUIRED ACTIVATION "Unless deactivation is permitted by this policy, members shall activate their recorders prior to, or as soon as practical upon arrival to, any of the following events: (a) All calls for service and while en-route to priority calls. (b) All enforcement and investigative contacts including, but not limited to, traffic stops, pedestrian stops, and all contact with suspects and witnesses. (c) Traffic collisions. (d) Crimes in progress. (e) Vehicle pursuits. (f) Advising a person of Miranda rights. (g) Consensual searches of persons or property. (h) Any other contact that becomes adversarial."**

---

5 "Injunctive and punitive relief conceded" (Reply p. 7)

City of West Linn: Plaintiff abandoned those remedies by silence.
Plaintiff's r: Both remedies appear in the SAC prayer (pp. 103-106).

Plaintiff: FRCP 54(c) lets the Court award any relief consistent with proof; opposition-brief space limits do not waive claims.

---

6 "Improper removal / repetitive suit" incorporation (County argument)

City of West Linn: Adopts County's § 1441(a) theory.

Plaintiff's: Opp. 14-16 shows the state case was derailed by defendants' non-appearance (service dates 11-28-22, 12-28-22, 4-3-23). A never-adjudicated, un-served state action is no bar to an independent federal filing (*Semtek v. Lockheed*).

---

7. Rule 15(a) delay prejudice

City of West Linn: Four-year delay defeats "justice."

Plaintiff's: Timeline—incarceration through 7-8-22, state suit 11-22, clerk-rejection emails 5-24, FAC 9-9-24, SAC 10-9-24—shows continuous diligence under *Hebbe v. Pliler*, 627 F.3d 338; defendants had notice since 2022, so no prejudice.

Requested disposition: Deny City of West Linn's Motion to Dismiss; at most substitute "City of West Linn" "WLPD", In state court William Stabler had said was basically he same and Plaintiff was trying to keep consistency.

DDA-Rebecca Portlock

Below is the **same two-paragraph format** Plaintiff asked for—one block for what **DDA Portlock** says in her seven-page Reply, the next for the pinpoint answer that is **already in Plaintiff's record** (Second Amended Complaint ¶¶, Plaintiff's Consolidated Opposition pp., clerk e-mails, exhibits, etc.). No wide tables—just clean, court-friendly pairs.

---

1 Absolute prosecutorial immunity (Reply pp. 1-2)

Portlock: Everything she did was a core "advocacy" function shielded by absolute immunity.
Plaintiff's r: Opp. 56-58 & SAC ¶¶ 62-68, 73-80 allege (a) fabricating a false COVID diagnosis, (b) pressuring the only witness via child-custody threats, and (c) blocking body-cam footage by DHS seal.
Buckley v. Fitzsimmons, 509 U.S. 259, 274, holds fabrication and witness-tampering are *investigative* or *administrative*, not protected advocacy; immunity therefore fails.

---

2 Statute of limitations (Reply p. 2)

Portlock: § 1983 claims are untimely; Plaintiff sued her after two years.

Plaintiff's r: Opp. 20-26 & Mot. Leave 2-3 detail that Portlock's own concealment (14 discovery denials, continued DHS seal) is fraudulent concealment tolling the clock (*Pearl v. City of Long Beach*, 296 F.3d 76). Disability-tolling under ORS 12 .160 and jail library bans independently extend time.

NONE THE LESS Check out the next page! ON THE VERY BOTOM EVERY ONE GOTT THERES EVEN IN THE SAME BUILDING- SHE JUST LIKE THESE MOTONS SHE IGNRED THERE IS LETTRES WRO HER CLEARLY TELLING HER BEFORE I LFT

SHE DID RECEIVE NOTICE:

3 No conspiracy / no malicious-prosecution facts (Reply pp. 3-4)

Portlock: Plaintiff plead only speculation, no "meeting of the minds."
Plaintiff's r: Opp. 59-61 cites three overt agreements: (1) on-scene "another-incident" fabrication with officers (SAC ¶ 44), (2) the 6-10-22 COVID lie jointly advanced with court advisor Medina and Judge Steele (audio Exhibit M), (3) coordinated suppression of body-cam video. Those acts satisfy *Avalos v. Baca*, 596 F.3d 583 (9th Cir. 2010). Macy's 6-24-22 courtroom statement "he broke no laws" but prosecution continued equals malicious prosecution under *Yarris v. Delaware County*, 465 F.3d 129.

---

4 No Brady violation (Reply p. 4)

Portlock: She never withheld exculpatory evidence.
Plaintiff's r: SAC ¶ 67 & Opp. 61 note fourteen written jail kites for City of West Linn body-cam footage—all denied by Portlock's DHS-seal order (Email Ex. J). Suppressing plainly material evidence is classic *Brady* misconduct, expressly outside absolute immunity (*Buckley*).

---

5 Extended detention is the jail's fault (Reply p. 5)

Portlock: Any extra week in jail was on Clackamas County, not her.
Plaintiff's r: SAC ¶ 81 & Opp. 61-62 show Portlock maintained charges after Macy's recantation and despite the release order; the jail confirmed it possessed release docs but was awaiting DA clearance. Holding someone past a court-ordered release is a Fourteenth-Amendment liberty violation (*Edwards v. Balisok*, 520 U.S. 641).

---

6 OTCA NOTICE MISSING FOR STATE-LAW TORTS (REPLY P. 6)

Portlock: Intentional-tort claim fails for lack of 180-day notice.
Plaintiff's r: SAC ¶ 4 & Opp. 60-61 plead "actual notice" via (i) November 18 2022 state filing naming Portlock, (ii) multiple in-custody grievances, (iii) written notice to Oregon DOJ. Oregon's "substantial-compliance" rule (*Urban Renewal Agency v. Lackey*, 275 Or 35) treats actual notice as sufficient, and disability excuses strict timing (*Stevens v. Bispham*, 316 Or 221).

---

7 NO PERSONAL-CAPACITY § 1983 CLAIM (REPLY P. 6-7)

Portlock: She acted only in an official role; § 1983 bars personal liability.
Plaintiff's r: Hafer v. Melo, 502 U.S. 21, 31 confirms state officials are "persons" in their **individual** capacities. SAC ¶¶ 62-68, 73-80, 88 detail Portlock's personal acts—fabrication, witness coercion, suppression—more than "threadbare" and fully plausible under *Iqbal*. Immunity does not cover willful rights deprivation (*Scheuer v. Rhodes*, 416 U.S. 232).

Requested disposition: Deny Portlock's Motion to Dismiss; allow all federal claims to proceed and hold state-tort notice satisfied by substantial compliance.

Each paragraph restates the County's point in plain English and then gives the essence of **Plaintiff's** rebuttal as it already appears in Plaintiff's Consolidated Opposition (LOFALL Opp'n § VI, pp 63-94). Feel free to copy-paste or tweak the language when Plaintiff finalize Plaintiff's sur-reply or hearing outline.

---

1. REMOVAL POWER / "RE-LITIGATION" (§ 1441(A))

County Of Clackams: Only a defendant can remove a state case; Plaintiff're trying to run the same suit twice.

Plaintiff's rebuttal: The state action never reached the merits because County actors stone-walled service, ignored court dates, and were dismissed by their selves ... much like here, except now Plainiff ss the shams. This federal case is not a second bite—it is the *first* forum that can actually reach the federal-rights questions after state mechanisms failed. Supreme Court precedent lets a civil-rights plaintiff choose a federal forum once state remedies prove illusory. (Opp'n 65-66)

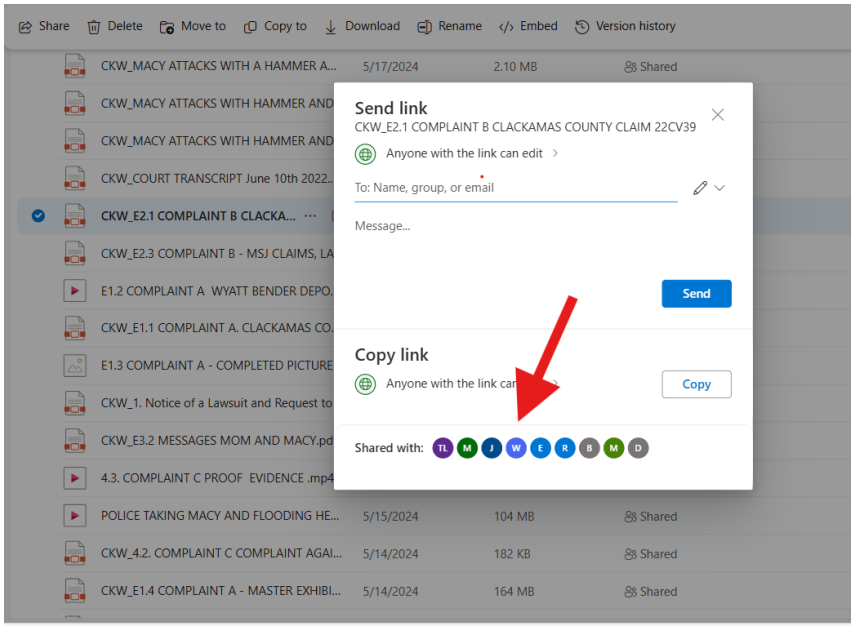
---

2. Statute of Limitations

County's story: All § 1983 claims are untimely under Oregon's 2-year clock.

Plaintiff's rebuttal: Equitable doctrines keep the clock stopped:

- **Disability & incarceration:** Legal blindness, denial of eyewear, and nine-day blocks of library access make ORS 12.160 tolling automatic.
- **Fraudulent concealment:** Body-cam video, medical files, and 62 deleted defense files were hidden or destroyed, so the clock can't start until disclosure.
- **Continuing violation:** Evidence suppression and refusal to release ID/documents stretched well into 2024.
- **Diligence:** Plaintiff opened the state case within months of release and have litigated nonstop ever since. (Opp'n 67-74)



---

3. Violation of the August 7 Order on Amendments

County's story: The First and Second Amended Complaints exceeded the limited leave Judge Hernández gave Plaintiff.

Plaintiff's rebuttal: Rule 15's "freely give" standard—plus the ADA duty to accommodate a pro-se blind litigant—requires liberal permission to perfect pleadings. Plaintiff filed within 30 days, corrected the Court-identified defects, and added only the parties whose conduct the new facts revealed. Any technical over-breadth is curable nunc pro tunc; dismissal is the harshest and least just remedy. (Opp'n 75-77)

---

4. "Wrong Party" (Jail / Sheriff's Office can't be sued)

County's story: Only the County itself is a suable § 1983 "person"; the Jail and Sheriff's Office must be dismissed.

Plaintiff's rebuttal: Fine—swap the caption. Courts routinely substitute the County when a pro-se plaintiff names a department. Technical mis-naming is not grounds for prejudice-inducing dismissal. (Opp'n 78)

---

5. Fourteenth-Amendment Due-Process Claim "Not Stated"

County's story: Plaintiff never pleaded a real due-process theory for the week-long hold after the judge ordered release.

Plaintiff's rebuttal: SAC ¶ 81 and Decl. ¶ 81 allege a *post-release* liberty interest plus deliberate refusal to process release papers that were already in the jail's possession. No adequate post-deprivation remedy exists for ongoing illegal confinement, so procedural due process is violated the moment detention continues without lawful basis. (Opp'n 81-83)

---

6. § 1983 Sufficiency: Personal Participation & Monell

County's story: No facts tie individual deputies to wrongdoing, and no policy/custom links the County.

Plaintiff's rebuttal: Personal acts: deleting 62 defense files (Guard Baker), denying eyewear (Sgt Wooster), housing with known COVID patient (shift sergeant), ignoring release order (booking OIC). Policy/custom: routine nine-day law-library blackout, systemic withholding of medical records, and a documented pattern of "no-show" litigation posture. Those are textbook Monell patterns of deliberate indifference. (Opp'n 83-91)

---

7. Oregon Tort Claims Act (OTCA) Notice

County's story: Plaintiff's state-law tort counts fail because Plaintiff never pled the 180-day notice.

Plaintiff's rebuttal: "Actual notice" + "substantial compliance" save the claim. Notice was hand-delivered via: (1) the November 2022 state lawsuit; (2) a stack of in-custody grievances naming each County entity; and (3) direct letters to County Counsel and the Oregon DOJ. Oregon courts excuse literal-form defects when the

entity had every chance to investigate. Visual impairment and incarceration supply the "extraordinary circumstances" exception. (Opp'n 92-93)

Bottom line: Each County argument collapses either under equitable doctrines (1-2, 7) or simple curative amendments (3-4) or the detailed facts Plaintiff already pled (5-6).

EMAIL THRED :

SHOWING

- **Plaintiff trying to hurry court up, flew to Portland twice and it was concealed**
- **Multiple notices of needing to move to federal court because of the no shows of Clackamas**

From: Melanie Webb <MWebb@cisoregon.org>
Sent: Wednesday, October 18, 2023 2:00 PM
To: Janet M. Schroer <JMS@hartwagner.com>; Inga O. Ward <IOW@hartwagner.com>
Cc: Tyler Lofall <tyleralofall@gmail.com>; William Stabler <wstabler@cisoregon.org>; Dave Lewis <dlewis@cisoregon.org>; Raechelle Ottosen <rottosen@cisoregon.org>
Subject: Tyler Lofall v. City of West Linn - Clackamas County Case No. 22CV39627

Pro Tem Judge Schroer,

A hearing on Plaintiff's Motion for Relief has been set before you on October 23rd at 9 a.m. Below is the link with the parties briefing on the matter. I've included the Order Denying Plaintif's Motion for Order to Show cause, which was signed by Judge Wetzel on October 11. I contacted the court today and they said that Judge Wetzel didn't like the verbiage in the Order, which is why he denied it, but wanted a hearing to go forward on Plaintiff's Motion.

Please let us know if you have any questions or need any other information.

Lofall v. City of West Linn Pleadings

Melanie Webb|Legal Assistant

Lewis, Nweze & Stabler|15875 Boones Ferry Rd #1469|Lake Oswego, OR 97035

503-763-3862|503-763-3900

cisoregon.org

Barbara Brink<Barbara.J.Brink@ojd.state.or.us>

To:MWebb@cisoregon.org

Cc:You;wstabler@cisoregon.org;dlewis@cisoregon.org;rottosen@cisoregon.org

Thu 10/19/2023 9:45 AM

Good Morning Melanie,

It has been brought to my attention you sent the e-mail below directly to Judge Schroer and her staff.

You should never e-mail any of our Judges directly. In the future, you NEED to reach out to the Calendaring Department if you have information you want to provide to our ProTem Judges. I am their assistant for all matters related to the cases they are presiding over while they are on the bench.

Thank you,

Barbara Brink

Civil and Domestic Relations Calendaring

Docketing Coordinator

Clackamas County Circuit Court

807 Main St

Oregon City, OR 97045

503-655-8643 opt 2

Melanie Webb<MWebb@cisoregon.org>

To:Barbara Brink

Cc:You;William Stabler;Dave Lewis;Raechelle Ottosen

Thu 10/19/2023 9:47 AM

My apologies. Thank you for letting me know!

Melanie Webb|Legal Assistant

Lewis, Nweze & Stabler|15875 Boones Ferry Rd #1469|Lake Oswego, OR 97035

503-763-3862| 503-763-3900

cisoregon.org

Tyler Lofall

To:Melanie Webb

Fri 10/20/2023 10:37 PM

Show all 7 attachments (11 KB)Save All Attachments

William,

They waited too long for my I was already committed on my flight . I got to go in exparte m-w sometime . Let me know Monday if you want to be there

---

Melanie Webb<MWebb@cisoregon.org>

To:You

Fri 10/20/2023 10:38 PM

I'm out of the office the week of October 23rd. If you need assistance please contact Raechelle Ottosen at rottosen@cisoregon.org.

Tyler Lofall

To:Melanie Webb

Cc:Janet M. Schroer;Inga O. Ward;William Stabler;Dave Lewis;Raechelle Ottosen

Tue 10/24/2023 11:59 AM

Show all 4 attachments (6 KB)Save All Attachments

William,
Due to the statutes of limitations coming up within a few months, and Trial just around the corner, and repeatedly being denied an attorney, denied the freedoms of not be4ing arrested yet I don't have the luxuries of not being interfered with.... I can say per you entering into my life. however here we are... Now I'm not saying that there is any good answer here.... But I know what's not good...and dealing with the court on courts terms and not tell anyone how or why.... such as this entire method Iver done to tackle today. Has got to be one of the Worst Systems in the history of the world for example. the courts don't give advise to be fair,

yet they are super picky so sure I I can kinda follow your screen. but you the courts don't give me details so I do more and more , (both) WHATR I was guessing, and then additionally I do a second set because I just need it right! and 0responding is oft6en better than missing something. so long story short you get all sorts of extra/... then by the end of these message interactions. I'm lost, you str trying to alimony mr over procedural error not the facts. and 90 motions late rim still lost, getting fraud against me and there is no way that the defendants should have a chance ...

Point was William is I am going to be in Ex-Partee TOMORROW, ASKING FOR THIS EMERGENCY Optus I really need it to go the rough o r I'm going to lose about everything. . I cant file the undertaking of costs and that is 100% I was arrested days ahead of time trying to clean that all up. and I don't really find it fair if I just get forced for all or nothing no attorney, when I could be able to have an attorney

I mean at this point I just want my life back.... so i don't know if you feel that y'all really at fault. but I tell you what....l I know the answer... I mean some awareness WOULD BE NICE , I DIDNT PUT MY SELF IN JAIL, MY EMERGENCTY MOTION. AND INFACT I DIDNT EVEN NEED THE MOTION I JUST NEEDED

?

Thank you,,
/s/ Tyler A. Lofall
Tyler A. Lofall

(386) 262-3322
tyleralofall@gmail.com

William Stabler<wstabler@cisoregon.org>

?

Cc:Dave Lewis;Raechelle Ottosen;Melanie Webb

Tue 10/24/2023 12:41 PM

Mr. Lofall,

I don't quite understand what you are requesting. The court set the hearing on your motion for November 20, 2023.

To be clear: I object to you having any ex parte contact with the court on any issue in this case.

William Stabler|Litigation Attorney

Lewis, Nweze & Stabler|15875 Boones Ferry Rd #1469|Lake Oswego, OR 97035

503-763-3834| 503-763-3900

cisoregon.org

Tyler Lofall

To:William Stabler

Tue 10/24/2023 12:58 PM

Show all 4 attachments (5 KB)Save All Attachment

I have an ex-parte right and I'm trying to give you contesting notice. I lost too many rights and will co tongue to lose them

If I wait till that time to approach the problem. I need to have my federal claim rights. Statute of limitation in's will surely intrude with trial a month away isn't fair. I'm geving you notice that I'm putting together relief so I can take position I think it's fair to say that going to trial without 79 k, financially drained and... just expected to wing it... where with say malicious prosecution ... I could have the elements satisfied and still fail to succeed at the claim I. A meaningful and at.

Community completely outside of my control do you see any other option from my point

To be clear: I object to you having any ex parte contact with the court on any issue in this case.

William Stabler|Litigation Attorney

Lewis, Nweze & Stabler|15875 Boones Ferry Rd #1469|Lake Oswego, OR 97035

503-763-3834| 503-763-3900

cisoregon.org

Tyler Lofall

To:William Stabler

Tue 10/24/2023 1:31 PM

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In other words . Say that I didn't do anything to Macy, sh was mad about me goin back to my ex and I never wanted anything g to do ith litigation .... Would you believe in that situation I should risk losing even more by unnecessary just because I'm not directly strong at navigating ORCP,? does it make sense that I need risk everything wTo the

I see it like this .I didn't want to o litigate . I had my Assignment stollen with lies and deceit and thrift..., it doesn't mean if I messed up on procedural error I should lose... if I'm getting intentionally targeted in tummy probate case for example . See what I'm saying ? I don't want to get involved and more so I don't think I need to b flawless to prevail the same... and honestly the way the system intentionally assaults me with stupidity f om Dana and Catlin . Then regardless even on Caims they ith satisfied elements still you find fight the alread satisfied claim in a way that you are attempting defeat me on proc duralumin errors .....

Now where I stand now, I didn't want fraud, I didn't know any litigation, I had an AOB it was irrevocable mine ... decided . Why should I be put in those rights I've already lost slot but in the case where pi defend everyy claim even malicious pros caution when ad per Thompson v Clark I already won why does i

however

Tyler Lofall

To:William Stabler

Wed 10/25/2023 11:08 AM

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Mr. Stabler,

I was wanting to know if you were wanting or planes on being at exparte today? If you are I will be there ready if not or tomorrow is a better day I will go tomorrow to be more prepared, I was just taking in to consideration of your time.

Tyler

Tyler Lofall

To:William Stabler

Wed 10/25/2023 11:25 AM

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Mr. Stabler,

To be clear, and in fairness, I am being encroached by statutes of limitations, the inability to comply with Undertakings of cost, and personal relationships and my wellness and with undeniable cause being the malicious prosecution (elements already satisfied) and so to not be able to follow through on any of my

harms properly because the court won't schedule a timely emergency motion followed by you leaving town is to simplify things unfair to me for you to try and hide being resets and procedural issues caused by my not having the ability for counsel in a situation strictly governing my rights.

Tyler

Tyler Lofall

To:William Stabler

Wed 10/25/2023 12:35 PM

Show all 7 attachments (11 KB)Save All Attachments

Mr. Stabler,

I have not heard a response so I am going to take the extra day to chck all my facts and laws and I will send you what I am asking for exparte when I am complete .

Tyler

William Stabler<wstabler@cisoregon.org>

To:You

Cc:Dave Lewis;Melanie Webb;Raechelle Ottosen

Thu 10/26/2023 8:04 AM

Mr. Lofall,

As you know, the hearing for your motion is set for November 20 and I object to you having any ex parte contact with the court on any issue.

William Stabler|Litigation Attorney

Lewis, Nweze & Stabler|15875 Boones Ferry Rd #1469|Lake Oswego, OR 97035

503-763-3834| 503-763-3900

cisoregon.org

Tyler Lofall

To:William Stabler

Thu 10/26/2023 3:19 PM

Show all 7 attachments (11 KB)Save All Attachments

Mr. Stabler,

So what you're saying is you believe it's most fair in this situation that I have to stay pro se because in this situation it's the better situation for you? And since you're an attorney you believe in them being a good thing. However if I had one and didn't have a $32,599.50 road block in my way receive my irrevocable AOB.

Did you know that if someone can't afford a lawyer they don't have rights? And then police officers can just arrest them and say what ever they want ? Cool huh! They just ignore preserve discovery requests and say oops! Man no wonder they are loved so much ...

So tell me, how apparent does someone have to be in the wrong and someone else have to be in the right, for you to stop trying to use your education in law to cripple their future ? Because I see how this is gonna work. Everyone and their sister can see as clear as day the rules of civil procedure and the stigma of im just a pro se litigant is being used against me to to make key pieces missed so your clients can avoid liability ultimately putting me in a position that gets worse making it harder and you knowingly allow it to happen because it's the only way you can win... and somewhere down the road that became more important than doing what's right .